Students Studying in The United States

VOLUNTEERING AND UNPAID CO-OP/ INTERNSHIPS

Northeastern University values experiential learning and serving our communities. While volunteering may seem simple, it is actually a complex area in which immigration regulations and labor laws intersect.

COMPLEXITIES OF VOLUNTEERING

If you are interested in volunteering, you must be aware of relevant F-1 and J-1 regulations, so you and the organization do not violate any rules regarding employment authorization. F-1 and J-1 students who are working off-campus must be authorized before engaging in the employment. Without proper authorization, off-campus employment, including some volunteering, would be considered a violation of your F-1 or J-1 requirements. The consequences may include loss of

your F-1 or J-1 status in the U.S.—making it difficult to reacquire lawful status within the U.S. **If you are considering engaging in a volunteering opportunity, please make an appointment with an OGS adviser before making plans to begin any activity.**

VOLUNTEERING VS. UNPAID CO-OP/INTERNSHIP

There is a difference between volunteering and engaging in an unpaid internship.

Volunteering refers to donating time with an organization whose primary purpose is charitable or humanitarian in nature, without remuneration or any other type of compensation. F-1 and J-1 students are allowed to engage in volunteer work as long as it meets this stated criteria. For example, it is permitted for F-1 and J-1 students to volunteer at a local homeless shelter, charitable food pantry, or American Red Cross.

Unpaid co-ops/internships/clinical rotations/experiential learning opportunities, on the other hand, do not usually qualify as "volunteer" activity. Unpaid co-ops/internships/clinical rotations/experiential learning opportunities are primarily offered by the private sector and related to the intern's major field of study. Therefore, F-1 and J-1 students are advised to seek work authorization prior in order to engage in unpaid co-ops/internships/clinical rotations/experiential learning opportunities.

The Department of Labor in the U.S. has guidelines for those seeking an unpaid internship, please see here (http://www.dol.gov/whd/regs/compliance/whdfs71.htm), the "Primary Beneficiary Test" outlined on the Department of Labor's website can be used to determine whether or not the unpaid internship is considered employment.

Because of the consequences of unauthorized employment, we caution all F-1 and J-1 students to consult with OGS when considering engaging in an unpaid co-op/internship/clinical rotation/experiential learning opportunity or volunteering opportunity. Please make an appointment with OGS before making plans to begin any activity.

U.S. DEPARTMENT OF LABOR'S DEFINITION VOLUNTEERING

The Department of Labor (https://webapps.dol.gov/elaws/whd/flsa/docs/volunteers.asp) is concerned both with the protection of jobs for U.S citizens, and with the prevention of exploitation of workers. They have created laws (https://www.ecfr.gov/current/title-29/subtitle-B/chapter-V/subchapter-A/part-553/subpart-B) to ensure employment that should be paid is not done for free. While both you and the employer may be happy with an unpaid arrangement (for example, you may be eager to work even on an unpaid basis in a company in order to gain job experience), this may be considered an unfair arrangement in cases where the work is normally performed by a paid person and both the company and the employee are benefiting from the employment.

HOW TO DETERMINE WHETHER AN ACTIVITY IS TRULY VOLUNTEERING AND DOES NOT REQUIRE WORK AUTHORIZATION

Employment authorization is NOT required when the work performed can be considered volunteering. To be considered volunteering, the work performed by the individual must meet the following criteria:

- No compensation or expectation of compensation
- The volunteer cannot displace a genuine employee and the services provided by the volunteer should not be the same services for which he or she was previously paid and/or expects to be hired and paid for in the future
- Services are performed for a non-profit charity and the work is “charitable” in nature
- Services are performed for a state or local government agency and there is a “civic” purpose to the work

VOLUNTEERING AT NORTHEASTERN

If you are a student considering volunteering or engaging in an unpaid co-op/internship/clinical rotation/experiential learning opportunity at Northeastern or a staff/faculty looking to hire a volunteer or unpaid co-op/intern, please review this guidance (https://generalcounsel.northeastern.edu/about/volunteer-and-intern-toolkit/) from Northeastern University Office of General Counsel.

Due to the complexity of U.S. labor laws: all university departments, who want to have students volunteer within their department, are advised to thoroughly review this resource. If they have further questions on whether or not the engagement is considered volunteering, they should check directly with the Office of General Counsel.

RELATED ARTICLES:

F-1 Curricular Practical Training (https://international.northeastern.edu/ogs/employment/off-campus-employment/f-1-curricular-practical-training/)

J-1 Academic Training (https://international.northeastern.edu/ogs/employment/off-campus-employment/j-1-academic-training/)

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OFFICE HOURS

Monday-Friday: 8:30a.m.-5:00p.m.
(Note: We are closed on Tuesdays from 3:00pm – 4:00pm for all staff

training and meeting).

Phone Hours:

Monday-Friday: 8:30a.m.–4:30p.m. ET

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